

THE QUESTION BEFORE THE LOCAL

What this packet places before Local 131, what it does not ask the Local to decide, and what remains with the members · prepared September 9, 2026 by Kevin Mears · Attachment 4 of 4

The record

I was a member of Local 131 from October 2017 until my withdrawal on June 2, 2025, and served two years as Recording Secretary. This packet places two proposed charges before members under Article XVIII: one against me and one against the Business Representative. Neither has been filed. Each requires a member's independent decision and signature.

On January 22, 2025, I asked the Local for assistance preparing a written safety refusal. The Business Representative responded in writing the same afternoon, including: "Don't write anything down. That is my advice." The exchange is reproduced in full in Attachment 2, Part A.

On September 3, 2026, I asked in writing that the Constitution be applied — to the Business Representative and to me. The written replies that followed are reproduced in Attachment 2, Part B.

My side of the record: I held the January 22 writing while still a member and did not prefer charges before withdrawing. Later I published internal material into a public repository. Those are the acts I have placed into Attachment 1, as two counts, for a member's signature.

The boundary

This packet does not ask the membership to decide why anyone acted as they did. It does not ask the membership to decide my character, Marvin Regensberg's character, the merits of any agency filing, whether I suffered damages, whether the Local caused any later consequence in my life, or whether my broader account of the trade is correct.

It asks something narrower: whether individuals within this Local want to put their name and signature on the charges against me, on the charges against the Business Representative, or on neither — that is, whether the writings and admitted acts placed before you are matters for the procedure your Constitution provides.

I prepared both forms because I do not want the answer determined by who is speaking. I have not signed either because I cannot. A member who signs either form should do so only after independently reading the evidence and determining that the charge is theirs to make. A member is equally free not to sign.

A decision that the facts do not support either charge is an answer. A decision that the Constitution does not reach one of us is an answer. Filing one, both, or neither remains with the membership. I am not asking for a particular verdict in this letter.

Disclosures — where this record already stands

The underlying record is public. Separate filings and disclosures have also been made outside the union. Those proceedings stand independently of this packet and do not determine what any member should do under Article XVIII.

What stays outside

I spent eight years in this trade. There is much more I could say about those years and about what followed my safety complaint. That account exists elsewhere in the public record. I have deliberately left it outside this packet because none of it is necessary to answer the question these attachments place before the Local. The documents needed for that question are here. The judgment is not mine.

The record is mine to provide. The decision is yours to make.

Kevin Mears

Withdrawn, Local 131, June 2, 2025 · Former Recording Secretary, Local 131

The broader account — the eight years, the safety record, and what followed — stands outside this packet, in the public record: github.com/Bluescontact/building-9980-account.